

**CHAPTER lxxv.**

An Act to confer further powers upon the Southend Waterworks Company to extend their limits for the supply of water to authorise the transfer to them of the water undertakings of the Urban District Council of Leigh-on-Sea and the Rural District Council of Billericay to raise additional capital and for other purposes.

A.D. 1907.

[26th July 1907.]

WHEREAS the Southend Waterworks Company (in this Act called "the Company") were incorporated by the Southend Waterworks Act 1879 and were thereby authorised to construct and maintain waterworks and other works and to supply the borough of Southend-on-Sea and other places in that Act specified with water and further powers were conferred upon the Company by the following Acts (that is to say):—

The Southend Waterworks Act 1894;

The Southend Waterworks Act 1898; and

The Southend Waterworks Act 1904;

and by the said Acts (in this Act referred to as the Southend Waterworks Acts 1879 to 1904) the Company are empowered to supply water within the limits prescribed by the said Acts:

And whereas a statement of the authorised share and loan capital of the Company is set forth in the schedule to this Act:

And whereas the demand for the supply of water within the limits of the Company and in the urban district of Leigh-on-Sea and the parishes in the rural district of Billericay in the county of Essex herein-after mentioned adjoining the Company's existing limits of supply has increased and is increasing and it is expedient for the purpose of enabling the Company to meet such demand

A.D. 1907. — that the limits for the supply of water by the Company should be extended as herein-after provided and that the Company should be empowered to supply water within such extended limits :

And whereas the urban district council of Leigh-on-Sea (herein-after called "the urban council") and the rural district council of Billericay (herein-after called "the rural council") have respectively constructed waterworks for the supply of water within their respective districts and the said councils are willing and ready to sell and transfer their respective water undertakings to the Company and it is expedient that they should be empowered to sell and the Company to purchase the same :

And whereas it is expedient that section 5 of the Rochford Rayleigh and Leigh Water Order 1891 confirmed by the Water Orders Confirmation Act 1891 should be repealed so far as it relates to the portion of the parish of Leigh therein referred to :

And whereas it is expedient that the Company should be empowered to raise additional capital and that further powers should be conferred upon them with respect to capital and the other matters in this Act contained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short titles.

1. This Act may for all purposes be cited as the Southend Waterworks Act 1907 and the Southend Waterworks Acts 1879 to 1904 and this Act may be cited together and are herein-after referred to as the Southend Waterworks Acts 1879 to 1907.

Incorporation of general Acts.

2. The following parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The consolidation of the shares into stock ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

And Part I. (relating to cancellation and surrender of shares)

Part II. (relating to additional capital) and Part III.

(relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or with the Southend Waterworks Acts 1879 to 1904 have the same respective meanings unless there be something in the subject or the context repugnant to such construction And—

Interpreta-
tion.

“The Leigh undertaking” means the water undertaking of the urban council by this Act authorised to be transferred to the Company ;

“The Billericay undertaking” means the water undertaking of the rural council by this Act authorised to be transferred to the Company ;

“The date of transfer” or “the respective dates of transfer” respectively mean the date or dates on which the Leigh undertaking or the Billericay undertaking respectively shall be transferred to the Company ;

“The Act of 1879” means the Southend Waterworks Act 1879.

4. From and after the passing of this Act the limits within which the Company may supply water and exercise the powers conferred upon them by the Southend Waterworks Acts 1879 to 1904 shall extend to and include the parish and urban district of Leigh-on-Sea and the parishes of Basildon (Chapelry) Bowers-Gifford Downham Dunton Great Burstead Laindon Lee Chapel Little Burstead Mountnessing Nevendon North Benfleet Pitsea

Extension
of limits of
supply.

A.D. 1907. Ramsden Bell House Ramsden Crays Vange and Wickford in the rural district of Billericay all in the county of Essex and within and throughout the extended limits the Southend Waterworks Acts 1879 to 1907 shall henceforth be in full force and have effect Provided that section 68 of the Act of 1879 the marginal note of which is "As to supply of part of premises" shall not extend and apply to the supply of water within the extended limits.

Exclusion of certain district adjoining Laindon Station from limits of supply.

5. Notwithstanding anything in this Act it shall not be lawful for the Company to supply water within a distance of one mile measured from the Laindon Station of the London Tilbury and Southend Railway.

Amendment of section 54 of Act of 1879.

6. Nothing in section 54 of the Act of 1879 shall entitle the Company in any case to demand for the water rate for any house or part of a house included in any division of the scale of charges set forth in that section a greater sum than they would be entitled to demand if the house or part thereof were of just sufficient rent or value to bring it within the next division of the said scale relating to premises of a higher rent or value whereon a lower rate per centum is chargeable.

Sale of Leigh undertaking to Company.

7.—(1) Subject to the provisions of this Act the urban council shall sell and transfer to the Company and the Company shall purchase the Leigh undertaking consisting of—

Firstly (for the sum of fourteen thousand four hundred and fifteen pounds twelve shillings and sevenpence)—

(a) The well pumps pumping station buildings machinery and fittings situate at Leigh at or near Canvey Road and London Road with the land and appurtenances belonging thereto or held therewith ;

(b) The reservoirs situate at Leigh at or near London Road north-west of Canvey Road with the land and appurtenances belonging thereto or held therewith ;

(c) All mains pipes valves hydrants fire-plugs washouts tanks engines pumps meters keys machinery apparatus implements plant stock and effects used or belonging to the urban council in connexion with their undertaking on the first day of August one thousand nine hundred and six ;

but not including the wells known respectively as Dobbins Well the Bay Well Lady Sparrows Well in Rectory Grove and connexions therewith the conduit in High Street the pump on the Strand or any surface springs all of which shall be retained by the urban council.

Secondly (for such sum as shall be sufficient to cover the actual cost of the same to the urban council)— A.D. 1907.

All mains pipes machinery meters and effects which between the said first day of August one thousand nine hundred and six and the date of transfer of the Leigh undertaking shall with the written approval of the Company's managing director have been laid and fixed as additions to or extensions of the Leigh undertaking.

(2) So much of the purchase moneys of the Leigh undertaking as shall be required for the purpose shall be retained by the Company and shall be applied by them in paying off so much of the existing loan indebtedness of the urban council in respect of the Leigh undertaking as shall be outstanding at the date of transfer and the Company shall be responsible for the payment thereof and of the interest subsequently accruing thereon and shall indemnify the urban council from all liability in respect thereof. The balance of such purchase moneys shall be paid by the Company to the urban council in cash and shall be applied by them for such purposes to which capital is properly applicable as they may with the approval of the Local Government Board determine.

(3) The loan indebtedness of the urban council in respect of the Leigh undertaking as above mentioned shall not after the transfer of the undertaking restrict the borrowing powers of the council in any way and shall not thereafter be reckoned as outstanding loans in calculating the amount which the urban council may borrow under section 234 of the Public Health Act 1875.

8. All existing communication pipes and consumers' fittings in the urban district of Leigh other than pipes or fittings which are shown to be defective so as to be causing waste of water shall be exempt from the operation of the regulations of the Company. Exemption of certain pipes and fittings from Company's regulations.

9. The existing hydrants or fire-plugs in the urban district of Leigh shall be deemed to be fire-plugs within the meaning of sections 38 to 40 of the Waterworks Clauses Act 1847. Company to maintain hydrants.

10. Section 5 of the Rochford Rayleigh and Leigh Water Order 1891 confirmed by the Water Orders Confirmation Act 1891 shall be read and construed as if the words "so much of the parish of Leigh as lies north of the high-water mark of the River Thames" were omitted from that section but the provisions of the Waterworks Clauses Act 1847 requiring the Company to Repeal of section 5 of Rochford Order of 1891.

A.D. 1907. furnish a constant supply of water within the said parish shall not be binding on the Company until the expiration of one year after the date of transfer of the Leigh undertaking to the Company.

Sale of
Billericay
undertaking
to Company.

11. Subject to the provisions of this Act the rural council shall sell and the Company shall purchase for the sum of two thousand three hundred pounds the Billericay undertaking consisting of a piece of land containing about one acre situate at Slices Gate in the parish of Great Burstead with the boring buildings machinery and fittings therein and thereon.

The purchase moneys of the Billericay undertaking shall be paid by the Company to the rural council in cash and the moneys thus received by the rural council shall be applied by them in paying off so much of their existing loan indebtedness in respect of their undertaking as shall be outstanding at the date of transfer or in such other manner and in such proportions as may be approved of by the Local Government Board and the balance (if any) shall be applied by the rural council for such purposes to which capital is properly applicable as they may with the approval of the Local Government Board determine.

For protec-
tion of rural
council.

12.—(1) Notwithstanding anything contained in this Act the rural council shall have the option of retaining any rights possessed by them under any existing agreements between the Company and the rural council for a supply of water in bulk for the parishes of North Benfleet Bowers-Gifford Pitsea Vange and Wickford respectively and if and so long as any such rights are retained by the rural council the Company shall not be under any obligations in relation to the supply of water for domestic purposes within any of the said parishes respectively in respect of which such rights are retained by the rural council. Provided nevertheless that nothing in this section contained shall be deemed to in any way interfere with the powers of the rural council as to the supply of water under the Public Health Act 1875 within the aforesaid parishes and the said powers or any of them may continue to be exercised by the rural council as aforesaid as if the said parishes had not been included within the limits of supply of the Company.

(2) As regards any of the said parishes within which the rural council shall not exercise their option of retaining their rights under any such agreement as aforesaid all the mains pipes valves hydrants washouts and other works and appliances belonging

to them in connexion with the water supply in such parish shall be sold by the rural council and bought and paid for by the Company at the cost price thereof. A.D. 1907.

13. The Company shall within six months after the completion by them of the necessary engines and pumps on the land at Slices Gate aforesaid lay down in such positions as the rural council shall require a length not exceeding eight and a half miles of distribution pipes for the supply of water in such parts of the extended limits within the district of the rural council as the rural council shall from time to time require. Provided that the pumping main between the boring at Slices Gate and an elevated tank to be constructed by the Company in the town of Billericay shall not be considered as forming part of the said eight and a half miles of pipes herein-before referred to. Company to lay down certain pipes.

14. So much of the extended limits as are within the district of the rural council shall have a first claim on the water to be obtained from the boring at Slices Gate and no water from such boring shall be supplied outside the said district to the prejudice of the supply to be afforded within the said district. Water from Slices Gate boring to be used for Billericay.

15. From and after the time when the Company shall obtain water from the boring at Slices Gate the Company shall at the request of the rural council and unless prevented by frost unusual drought or other unavoidable cause or accident provide the rural council with a supply of water in bulk sufficient for the use of all the inhabitants of any portion or portions of the district of the rural council by this Act included within the limits of the Company which may not at the time be receiving a supply of water from the Company the supply so to be provided being calculated on a basis of not less than four gallons nor more than eighteen gallons per head per diem of the estimated population of such portion or portions of the said district during the months of April to September inclusive in every year and not less than four gallons nor more than fifteen gallons per head per diem of the said estimated population during the succeeding months of October to March inclusive but the supply per head per diem required during the months of April to September inclusive in any year shall not exceed the quantity required during the succeeding months of October to March by more than twenty per centum. Such water shall be supplied from any principal main of the Company at such points within the said extended limits as the rural council shall require through high pressure meters to be provided and fixed by the Company. Provisions as to supply of water to rural council.

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The quantity of water calculated on the basis aforesaid required by the rural council during the periods before mentioned shall be certified by the rural council to the Company prior to the first day of January in every year and the quantity of water so required shall be delivered and taken in equal quantities as nearly as may be during the twenty-four hours of each day in such periods calculated from noon to noon.

The rural council shall pay to the Company for the water so required as aforesaid and whether the same shall be actually taken or not at the rate of one shilling and sixpence per thousand gallons such payment to be made quarterly at the office of the Company within twenty-one days after each quarter day and in default of payment within three months after any quarter day of the amount due the supply of water by the Company may be at once discontinued.

The rural council shall pay the Company an annual rent of thirty shillings for each meter supplied by them and the officers of the rural council shall have access at all reasonable times to such meters for the purpose of ascertaining whether such meters are correctly registering the amount of water supplied and in the event of any meter being found to register incorrectly the amount of water which shall have passed through the same shall unless agreed on be determined by arbitration. Provided that the meter shall be deemed correct if it registers within five per centum either fast or slow.

From the time when the Company commence to supply water to the rural council under the provisions of this section the rural council shall be entitled to take and shall take a supply of water from the Company in perpetuity unless and until otherwise mutually agreed between the Company and the rural council.

In any area supplied by the rural council under the provisions of this section the Company shall be exempted during the operation of any such provisions from any statutory liability to supply water for domestic purposes therein. For the purpose of any agreement terminating or limiting the operation of the foregoing provisions of this section the rural council may sell and the Company may purchase all or any of the mains pipes valves hydrants washouts and other works and appliances then belonging to the rural council in connexion with the water supply in the area to which such agreement shall relate.

Provided that nothing in this section contained shall be deemed in any way to interfere with the powers of the rural

council as to the supply of water under the Public Health Act 1875 within any area supplied by the rural council under this section. A.D. 1907.

16. On payment to the urban council of the balance of the purchase money for the Leigh undertaking as provided by this Act and on payment to the rural council of the purchase money for the Billericay undertaking on such dates as may respectively have been or shall be agreed between the Company and the urban council or rural council as the case may be the Leigh and the Billericay undertakings respectively with their respective rights powers and privileges shall subject to the provisions of this Act be conveyed and transferred to and shall thenceforth be vested in the Company freed and absolutely discharged (except as otherwise expressly provided by this Act) from all charges debts and liabilities upon or affecting the same or due from or payable by the urban council or rural council respectively.

Vesting of
Leigh and
Billericay
undertakings
in Company.

17. The urban council or the rural council as the case may be shall up to the respective dates of transfer bear and pay all outgoings and liabilities of every kind (including the interest on the mortgages of the urban council in respect of the Leigh undertaking) in respect of causes of action then existing and be entitled to receive all water rents or rates and other debts due to them respectively.

Urban coun-
cil or rural
council as
case may be
to pay out-
goings &c.

18. If at any time after the expiration of five years from the commencement of this Act the Company are not furnishing or prepared on demand to furnish a sufficient of supply of water in accordance with the provisions of this Act in any part of the district of any local authority within the extended limits of supply as conferred by this Act the local authority of such district may provide a supply in the whole or any part of their district within the limits of supply in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case this Act had not passed.

Power to
local autho-
rity to supply
water in case
Company
fail to sup-
ply.

If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

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Power to
London Til-
bury and
Southend
and Great
Eastern Rail-
way Com-
panies to
grant ease-
ments.

19. The Company on the one hand and the London Tilbury and Southend Railway Company and the Great Eastern Railway Company or either of them on the other hand may subject to the provisions of this Act enter into and carry into effect agreements with respect to the granting of easements to the Company for the purpose of laying main and other pipes in connexion with the undertaking of the Company in over under or across their respective railways or any of them or any lands held therewith.

Power to
owners to
grant ease-
ments &c.

20. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

For protec-
tion of Great
Eastern Rail-
way Com-
pany.

21. Notwithstanding anything in this Act or any other Acts or Orders contained the following provisions for the protection of the Great Eastern Railway Company (herein-after called "the railway company") shall be in force and have effect and be binding on the Company:—

In laying down and executing or in effecting the repairs and renewals of any mains pipes or other works which the Company may be authorised to lay down and execute upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings of or repairable or used by the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to plans and sections to be submitted to and in such manner as shall previously be reasonably approved by him and in all things by and at the expense of the Company who shall also restore and make good the roads over any such bridges level crossings and approaches which the railway company is or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations

of the Company and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of the traffic over such railways or at any station thereon and if any injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works under or near to any such bridge level crossing or other property the Company shall make compensation in respect thereof to the railway company the amount of such compensation together with full costs to be recoverable from the Company by all and the same means as any simple contract debt is recoverable:

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If any difference shall arise between the Company and the railway company as to the mode of executing or carrying out any of the acts operations matters and things aforesaid or as to the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed as arbitrator by the Board of Trade at the request of either party.

22. For the protection of the London Tilbury and Southend Railway Company (in this section called "the railway company") the following provisions shall unless otherwise agreed in writing between the Company and the railway company apply and have effect (that is to say):—

For protection of London Tilbury and Southend Railway Company.

- (1) All works to be constructed by the Company within their limits of supply as extended by this Act which shall in any way affect the railway of the railway company or any bridges or works thereof or any lands or property belonging to the railway company shall be constructed under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and according to plans and sections to be previously submitted to and reasonably approved by him but in all things at the expense of the Company and so as to cause no injury to such railway bridges works lands or property or interruption to the passage or conduct of traffic over such railway and if in consequence of the construction of such works any injury be caused to such railway bridges

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works lands or property or any interruption be caused to such traffic the Company shall make full compensation to the railway company in respect of such injury or interruption the amount of such compensation failing agreement to be settled by arbitration in the manner provided for settling cases of disputed compensation by the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement:

- (2) The Company shall not construct any works along over or across the railway of the railway company otherwise than in any road passing over under or across the said railway.

For protection of Conservators of River Thames.

23. Nothing in this Act shall extend to or be construed to extend to prejudice or derogate from the estates rights interests privileges liberties or franchises of the Conservators of the River Thames or to prohibit defeat alter or diminish any powers authority or jurisdiction which at the time of the passing of this Act the Conservators did or might lawfully claim use or exercise under and by virtue of the Thames Conservancy Act 1894 or otherwise.

Power to raise additional capital.

24. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise in addition to the capital which they have already raised and which they are authorised to raise under their former Acts any capital not exceeding in the whole for the general purposes of their undertaking two hundred and fifty thousand pounds by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of two hundred and fifty thousand pounds.

Except as otherwise provided new

25. Except as is by this Act otherwise provided the capital in new shares or stock created by the Company under this Act

and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital. The capital in new shares or stock so created shall form part of the capital of the Company.

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shares or stock to be subject to same incidents as ordinary shares or stock.

26. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called and paid on such new shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

27. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

Restrictions as to votes in respect of preferential shares or stock.

28. The Company shall not in any one year make out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of five pounds per centum per annum or than five pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Profits of Company on additional share capital limited.

29. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not except as herein-after provided be less than the

New shares or stock to be offered by auction or tender.

A.D. 1907. nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bidding or offer by tender of any holder or holders of shares or stock be the same in amount as any bid or offer made by any other person the bidding or offer of such holder or holders of shares or stock shall be accepted in preference.

Purchase money of capital sold to be paid within three months.

30. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Notice to be given as to sale of shares or stock.

31. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of the borough of Southend-on-Sea to the clerk to the council of any district within which a part of the limits of supply of the Company may be included and to the secretary of the Committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the said borough.

Shares or stock not sold by auction or by tender to be offered to shareholders.

32. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock not so disposed of or so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors

or offered to the holders of ordinary shares or ordinary stock at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold. A.D. 1907.

33. Any sum of money which shall arise by way of premium from the issue of any such shares or stock after deducting therefrom the expenses of and incidental to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend:

Application
of premium
arising on
issue of
shares or
stock.

Provided that in any case where a power to raise money by borrowing or to create a reserve fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

34. The Company may in addition to the moneys which they are authorised to borrow by their former Acts subject to the provisions of this Act borrow on mortgage of their undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power to
borrow in
respect of
additional
capital.

35. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Priority of
existing
mortgages.

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Repeal of provisions of former Act with respect to appointment of receiver.

36. Section 17 (For appointment of receiver) of the Southend Waterworks Act 1904 is by this Act repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision prior to the passing of this Act.

For appointment of receiver.

37. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies' Clauses Act 1863 as amended by the Companies' Clauses Act 1869 and of section 34 of the Act of 1879. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture stock and mortgages to be sold by auction or tender.

39. The provisions of this Act with respect to disposing of shares or stock by auction or tender and to the application of any money arising by way of premium shall *mutatis mutandis* apply to debenture stock issued and to any mortgages granted by the Company under this Act.

Receipt in case of persons not sui juris.

40. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Priority of money raised on mortgage or debenture stock over other claims.

41. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land

taken used or occupied by the Company for the purposes of the Company's undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred upon the Company. A.D. 1907.

42. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of the Company's undertaking being in all cases purposes to which capital is properly applicable. Application of moneys.

43. All costs charges and expenses of and incidental to the preparing and applying for and the obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1907.

The SCHEDULE referred to in the foregoing Act.

AUTHORISED CAPITAL OF THE COMPANY.

	Dividend authorised.	Amount authorised.
SHARE CAPITAL.		
Act 1879 - - - - -	10 per cent.	£ 20,000 0 0
Ditto - - - - -	7 "	60,000 0 0
Act 1894 - - - - -	7 "	80,000 0 0
" 1898 - - - - -	5 "	176,000 0 0
" 1904 - - - - -	5 "	184,000 0 0
	Total -	£520,000 0 0
LOAN CAPITAL.		
Act 1879 - - - - -	4 per cent.	20,000 0 0
" 1894 - - - - -	4 "	20,000 0 0
" 1898 - - - - -	4 "	44,000 0 0
" 1904 - - - - -	4 "	46,000 0 0
	Total -	£130,000 0 0
	Gross Total -	£650,000 0 0

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